highlighted in the work of Cheesman (2012a, 2012b) on the restructuring of law and courts from the 1960s.

Both the establishment of commissions and inclusion of finality clauses in law represent a noticeable continuity in lawmaking patterns. Further, all previous regimes in Myanmar went through a similar pattern of affirming that all existing laws remained in force unless otherwise repealed, while also dismantling the existing institutional structures and creating new ones by law. The quasi-civilian government led by Thein Sein has therefore trod a very familiar path in terms of the law-reform process.

Finally, in relation to the process by which laws are made, there have been higher levels of participation and transparency in lawmaking than in the past. This has facilitated a strategy of both managing conflict, in terms of taking into account different perspectives and at times revising draft laws on the recommendations of various civil society groups. The process of consultation, combined with more media freedom, has allowed dissenting voices to be heard. Sustained engagement and consultation with international and local actors was limited prior to 2011. Since then, there has been increased engagement with local actors, the private sector, stakeholders, and civil society; and more engagement with international actors and experts offering comparative examples of legal reform. There are many examples of this, such as the reform of the Media Law, or the introduction of the Foreign Investment Law (Kean 2013, p. 57). Yet for every example of community consultation, there have been many laws that have not included a public consultation process, or issues have been raised over the scale and scope of consultation held.

Although not new, there has been an increase in the level of foreign involvement in the consultation and legal drafting process — from international non-government organizations (INGOs), to consultants, and law firms. For example, under the previous regime, the military made claims that the Child Law No 9/1993 was to fulfil its obligations under the United Nations Convention on the Rights of the Child (although the law is not compatible with this convention).[35] Further, the Anti-trafficking in Persons Law No 5/2005 was said to be drafted with the assistance of international actors and with reference to international standards. This law allows for engagement between international organizations and the Central Body for Suppression of Trafficking in Persons under the Ministry of Home Affairs. Foreign involvement in drafting has become more frequent since 2011, and this has raised local concerns, suspicions and rumours over the